

AN ORDINANCE AMENDING TITLE 5 CHAPTER 2 SECTION 5 SUBSECTION 5 OF THE ADA COUNTY CODE FOR PETROLEUM CONTAMINATED SOIL OR DEBRIS DISPOSAL

BE IT ORDAINED BY THE BOARD OF COUNTY COMMISSIONERS OF ADA COUNTY, IDAHO THAT TITLE 5 CHAPTER 2 SECTION 5 SUBSECTION 5 OF THE ADA COUNTY CODE IS HEREBY AMENDED AS FOLLOWS:

5-2-5-5: PETROLEUM CONTAMINATED SOIL AND DEBRIS DISPOSAL:

A. County disposal sites can accept, as determined on a case by case basis, petroleum contaminated soil or debris. The petroleum contaminated soil or debris, as defined in 40 CFR 268.2, must not exhibit any hazardous waste characteristics outlined in 40 CFR Part 261 Subpart C to be acceptable for disposal at a county operated facility, unless it qualifies as a nonhazardous waste under 40 CFR 261.4(b)(10) on a case by case basis.

B. The solid waste management division will individually review all requests for disposal of petroleum contaminated soil or debris at county operated disposal sites. The person requesting disposal must demonstrate that the petroleum contaminated soil or debris is acceptable for final disposal.

C. Any person who desires to dispose of petroleum contaminated soil or debris at a county operated disposal site must submit a written request to the solid waste management division. When the request is received, the solid waste management division will review the material. If any of the following conditions exist, pursuant to federal law, the solid waste management division shall refuse to accept the petroleum contaminated soil or debris:

1. The petroleum contaminated soil or debris exhibits any of the hazardous waste characteristics listed in 40 CFR Part 261 Subpart C and is not exempted by 40 CFR 261.4(b)(10);
or

2. The petroleum contaminated soil or debris poses a health and/or safety risk to solid waste management division personnel, as determined by the solid waste management division; or

3. The petroleum contaminated soil or debris contains free liquids as defined by Method 9095B (Paint Filter Liquids Test) per the liquid waste restrictions in 40 CFR 258.28.

D. The solid waste management division will accept, for disposal at a county operated disposal site on a case by case basis, petroleum contaminated soil or debris under the exemptions provided in 40 CFR 261.4(b)(10).

E. Any person who requests disposal of petroleum contaminated soil or debris at a county operated disposal site shall provide representative samples to an ISO 17025 certified analytical laboratory. The extent of sampling shall be determined by a certified professional. Certified professionals shall include Professional Engineers (PE), Professional Geologists (PG), Certified Environmental Professionals (CEP), or other professionals with relevant certification demonstrating field sampling experience, as determined by the solid waste management division. The solid waste management division reserves the right to require additional testing if the sample is deemed insufficient. The solid waste management division may also require documentation from a certified professional certifying the soil or debris meets applicable disposal requirements.

1. Field samples taken with hydrocarbon vapor measuring equipment (HNU, OVA, etc.) are not acceptable.

2. Approved EPA SW-846 test methods must be used.

F. Petroleum contaminated soil or debris, not containing other hazardous constituents in concentrations above the thresholds in 40 CFR Part 261 Subpart C, with total petroleum hydrocarbon levels below the concentration levels listed in the following table may be accepted for direct disposal at a county operated disposal site:

Contaminant	Maximum Contaminant Concentration (mg/kg)
Gasoline Range Organics (GRO): C6-C10	100
Diesel Range Organics (DRO): C10-C28	1000
Oil Range Organics (ORO): C20-C40	1000

G. Petroleum contaminated soil or debris with contaminant concentrations greater than the amounts in the above table may be accepted for treatment at a county operated disposal site on a case by case basis. Any person who requests disposal is responsible for all expenses associated with treatment, testing, and storage, and such charges shall be determined on a case by case basis.

H. The solid waste management division reserves the right to require additional testing prior to disposal of petroleum contaminated soil or debris at a county operated disposal site. The solid waste management division also reserves the right to reject any petroleum contaminated soil or debris that may potentially pose an unreasonable risk or environmental concern. (Ord. 577, 3-22-2005; amd. Ord. 744, 2-23-2010)

APPROVED AND ADOPTED this 28th day of April 2026.

Board of Ada County Commissioners

By: 
Rod Beck, Commissioner

By: 
Ryan Davidson, Commissioner

By: 
Thomas Dayley, Commissioner

ATTEST:


Trent Tripple, Ada County Clerk

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